

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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TREVOR ATKINSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
CESAR FERNANDEZ (Tax Reg. # 967870),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Queens County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 20, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER CESAR FERNANDEZ (Tax Reg. # 967870), 113th Precinct, Queens County, NY

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
TREVOR ATKINSON,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
CESAR FERNANDEZ (Tax Reg. # 967870),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

-----X
Plaintiff **Trevor Atkinson**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory

and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Queens County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER CESAR FERNANDEZ, assigned Tax Registration # 967870, who at the time of this incident was employed with the 103rd Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER CESAR FERNANDEZ (Tax Reg. # 967870), is being sued in her individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and

authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on April 13, 2021.

STATEMENT OF FACTS

15. On May 21, 2020 at approximately 11:30 p.m. at the back of 114-13 200 Street in Queens County, New York, numerous police officers from the 113th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Cesar Fernandez (Tax Reg. # 967870) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
16. On May 21, 2020 at approximately 11:00 p.m., Plaintiff was sitting in his parked vehicle eating some food and talking on the phone when a group people began to violently attack him and the

vehicle. A brick was thrown through the driver-side window, hitting Plaintiff in the face and causing severe bruising and swelling to his face. Other individuals jumped on the hood of the vehicle, broke the windows, and began to assault Plaintiff. In a desperate attempt to escape the violent encounter, Plaintiff put his key in the ignition and drove the car away from the scene, accidentally hitting another vehicle before losing consciousness.

17. Defendant NYPD Officers arrived at the scene of the accident and placed Plaintiff under arrest and transported him to a local hospital. The moment Plaintiff was approached by officers at the scene of the accident he was not free to walk away or leave.
18. At the time of his false and illegal arrest, Plaintiff was not exhibiting any signs of intoxication, did not have an odor of alcohol on his breath, person, or in his vehicle, was stable on his feet, did not have glassy or watery eyes. Any physical difficulties he had were a direct result of the assault and car accident. Defendant NYPD officers recovered no alcohol, marijuana, contraband, or narcotics from his car.
19. Plaintiff woke up in the hospital handcuffed to his bed. He questioned a police officer about the reason for his arrest and was told he had been arrested for Driving While Intoxicated. Plaintiff explained to defendant officers that he was attacked by a group of people and drove his car for his own safety. Defendant officers never questioned Plaintiff about these individuals or made any attempt to investigate the crimes committed against him.
20. Plaintiff refused to submit a blood sample to defendant NYPD Officers.
21. Plaintiff was taken to the 113th precinct after his arrest. He refused a breathalyzer test at the precinct.
22. Plaintiff never made any statement to any defendant officers that could be construed as an admission of alcohol use.

23. Plaintiff was incarcerated for approximately two days. During his time in custody, NYPD defendants falsely and maliciously told the Queens County District Attorney's Office that Plaintiff had committed the crimes of operating a motor vehicle under the influence of alcohol and leaving the scene of an accident. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
24. Plaintiff was released on his own recognizance at his arraignment.
25. After his release, Plaintiff attended multiple court appearances before all charges were dismissed and sealed on January 14, 2021.
26. Plaintiff's arrest and detention took place during a peak period of the ongoing Covid-19 Pandemic. Thus, the actions of Defendant NYPD Officers, including Defendant NYPD Officer NYPD Officer Cesar Fernandez (Tax Reg. # 967870) in illegally arresting Plaintiff and causing a criminal proceeding against him to commence directly jeopardized Plaintiff's health as he was detained for several days inside of squalid and unventilated NYPD and New York State Court facilities, which were utterly lacking in proper protections and protocols to prevent the spread of Covid-19.
27. As a direct result of Plaintiff's illegal arrest and malicious prosecution, Plaintiff missed three weeks of work, totaling \$2,280 in lost wages.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

28. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 27 as if fully set forth herein.
29. The acts and conduct of the defendants, including defendant NYPD Officer NYPD Officer Cesar Fernandez (Tax Reg. # 967870) constitute false arrest and false imprisonment under the laws of the

State of New York. Plaintiff committed no crime as charged under the penal law. Defendant officers had no reason to believe Plaintiff was intoxicated prior to his arrest. Rather, there was ample evidence he had been assaulted by a group of people and attempted to flee the scene for his own safety.

30. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
31. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
32. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
35. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
36. Defendants commenced and continued a criminal proceeding against Plaintiff.

37. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted. Defendant officers were aware that there was no evidence Plaintiff was intoxicated at the time of his arrest. Defendant officers alleged Plaintiff attempted to flee the scene of an accident when, in reality, they knew he voluntarily remained at the scene of the accident.
38. The prosecution and criminal proceedings terminated favorably to Plaintiff on January 14, 2021.
39. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights because he remained in custody for approximately 48 hours.
40. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

41. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

43. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.
45. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
46. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
48. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

49. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants owed a duty of care to Plaintiff.
51. Defendants breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
52. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
53. All of the foregoing occurred without any fault by Plaintiff.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

55. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
57. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great physical and emotional injuries.
58. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

CONVERSION

59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. The City of New York and its employees, servants and/or agents acting within the scope of their employment did intentionally interfere with Plaintiff's exclusive right of ownership of several

items of personal property, to wit: a pair of Ferragamo glasses, a bracelet, and \$75 in United States currency.

61. Plaintiff had the exclusive right of possession of these items, but this possession was interfered with and/or terminated when defendant NYPD officers and other NYPD employees removed them from Plaintiff's vehicle at the time the vehicle was in the sole possession and custody of NYPD employees, and were not returned to Plaintiff when Plaintiff again took custody of his vehicle, or at any point thereafter.
62. Plaintiff did not give permission or consent to defendant NYPD officers or any other NYPD employee to take the sole, exclusive, and permanent possession of the aforementioned items.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. All of the aforementioned acts of defendants NYPD OFFICER CESAR FERNANDEZ (Tax Reg. # 967870) and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
65. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
67. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. As a result of the aforesaid conduct by defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
71. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
73. Plaintiff person was searched by defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
74. As a result of the aforesaid conduct by defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
75. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

77. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crimes of driving while under in the influence of alcohol and leaving the scene of an accident.
78. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed the acts driving under the influence of alcohol and leaving the scene of an accident, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses. Defendant officers were witness to Plaintiff's apparent sobriety and his willingness to remain at the scene following the accident.
79. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
80. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
81. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

82. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
83. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
84. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
85. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

87. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the Queens County District Attorney, including false allegations that Plaintiff committed the act of driving under the influence of alcohol.
88. Defendants NY NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
89. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney, including the circumstances surrounding Plaintiff's operation of the vehicle, including the attack on him by a violent mob.
90. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
91. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
92. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
93. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
94. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.

95. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.
96. Defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
97. Specifically, defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
98. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD OFFICER CESAR FERNANDEZ and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on January 14, 2021.
99. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

100. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
101. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
102. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

103. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

104. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

105. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

106. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

107. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

108. The acts complained of deprived the Plaintiff of their right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, TREVOR ATKINSON, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 25, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER CESAR FERNANDEZ (Tax Reg. # 956423), Gun Violence Suppression Division,
Zone 1, 1 Police Plaza, New York, NY 10038

